

County Commissioners Meeting July 21st 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=XcDz_BFYtKo
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Delaware County Commissioners Meeting Report

Meeting Date: July 21, 2025

Convened Time: 00:00:42 9:01 A.M.

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Commissioners was called to order at 9:01 A.M. on Monday, July 21, 2025, by the presiding officer.
- **Attendance:**
 - Commissioners present: Mr. Rick, Mr. Brand, and Commissioner Henry (Presiding Officer/President).
 - Members absent: None noted.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance.
- **Approval of Minutes:** The board reviewed the meeting minutes from July 7, 2025. Following brief discussion regarding formatting and detail levels, the minutes were approved by roll call vote (Commissioners Rick, Brand, and Henry voting "Yes").

3. Substantive Business & Board Action

00:02:57 Civic Center Authority Board Appointments

- **Sponsor / Presenter:** Commissioner Ram
- **Deliberation Summary:** The board addressed annual appointments to the Civic Center Authority Board, which expire July 31. Current members Scott Alexander and David Hanower expressed interest in reappointment. Cherish How is stepping down due to scheduling conflicts.
- **Action & Vote Disposition:** Motion made and seconded to reappoint Scott Alexander and David Hanower, and to not reappoint Cherish How. Approved via roll call vote (Passed Unanimously).

00:04:46 Solar Moratorium Update & Special Meeting

- **Sponsor / Presenter:** Commissioner Brand / Kylen Swackmer (Planning Commission)
- **Deliberation Summary:** Commissioners removed the solar moratorium item from the table to provide updates regarding brownfield site interest from Hollisine Clean Energy and regional county feedback. Kylen Swackmer announced a special Planning Commission meeting scheduled for **August 12, 2025, at 6:00 P.M. at the Justice Center** (doors open at 5:15 P.M.) to discuss the proposed solar ordinance. Public speakers must sign up in advance (categorized as pro- or anti-solar). Seating in the upper auditorium will be blocked off to comply with a 499-seat Fire Marshal capacity limit.
- **Action & Vote Disposition:** Motion to remove from table and subsequently return to table approved via roll call vote (Passed Unanimously).

00:12:31 IU Health Master Agreement

- **Sponsor / Presenter:** Commissioners
- **Deliberation Summary:** The board discussed the status of the IU Health clinic master agreement, noting that IU Health stated they cannot provide a "cost-per-visit" option in an employer solutions model clinic. Commissioners agreed to schedule a meeting with an alternative provider (Marathon Health) for the upcoming Thursday at 11:00 A.M.
- **Action & Vote Disposition:** Taken off the table for discussion and subsequently returned to the table via roll call vote (Passed Unanimously).

00:17:21 Presentation: America's Hometown Band

- **Sponsor / Presenter:** Roger McConnell & Larry McWills
- **Deliberation Summary:** Roger McConnell and Larry McWills presented a funding request of \$30,000 for operational support and musician compensation for America's Hometown Band, which performs roughly 30 times a year. Commissioners noted that the request was

not included in the EDIT (Economic Development Income Tax) plan and recommended presenting the request to the Delaware County Redevelopment Commission, which meets monthly.

- **Action & Vote Disposition:** Informational presentation only; no formal board action taken.

00:28:46 Automated Logic Controls (ALC) County Building System Update

- **Sponsor / Presenter:** Don Chambers, Superintendent
- **Deliberation Summary:** Superintendent Chambers requested \$159,000 to update outdated HVAC control systems on the second and third floors of the county building. The project includes software integration for remote monitoring, demo and replacement of 40 VAV controllers, sensors, valves, and room stats. Legal counsel confirmed this utilizes proprietary software from a single source provider.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

00:32:19 Atlas Collections Probation User Fees Contract

- **Sponsor / Presenter:** Jeff Hansard, Chief Probation Officer
- **Deliberation Summary:** Chief Probation Officer Hansard presented a contract with Atlas Collections, Inc. (Henry County) to pursue unpaid probation user fees after individuals leave supervision. The standard collection commission rate is 30%. Legal counsel noted that standard collection fee language could potentially be added to court probation orders by local judges to shift collection costs to debtors.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

00:36:31 Capital Asset Annual Update Agreement

- **Sponsor / Presenter:** Ed Carol
- **Deliberation Summary:** Annual agreement with Peterson to gather and compile county assets for financial reporting required by the State Board of Accounts, Baker Tilly, and Forbes. The cost is \$4,495, funded out of the general fund.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

00:37:36 LPA Consulting Contract Correction

- **Sponsor / Presenter:** Commissioner Brand
- **Deliberation Summary:** Board considered a correction to a previously approved LPA consulting contract. A typographical error listed a dollar figure (\$880,000) instead of the contract completion date in Section Three. The corrected completion date is June 30, 2027.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

00:38:31 Comcast Service Agreement (Mental Health Facility)

- **Sponsor / Presenter:** Commissioner Brand
- **Deliberation Summary:** Commissioners reviewed internet service requirements for the mental health facility needed for fire monitoring and certificate of occupancy. Due to Comcast engineering field requirements, an upfront capital contribution of \$21,479 is required (Option 1). BW Construction agreed in writing to cover 100% of this cost utilizing \$20,000 in project allowance savings.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

00:41:07 Merit Ground Lease Amendment

- **Sponsor / Presenter:** John Brook, Attorney
- **Deliberation Summary:** An amendment to the communication tower lease at the highway department. Monthly lease rates increase from \$200 to \$400, plus a 10% revenue sharing arrangement for additional carrier co-locations (e.g., AT&T). The 5-year agreement includes built-in cost-of-living increases beginning in 2027.
- **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

4. Open Public Comment / Citizen Forum

- **00:10:10 Cheryl Swingley:** Addressed utility vs. industrial solar definitions, local brownfield sites, state carbon sequestration laws, potential natural gas generation plants, and inquired about opposition arguments regarding utility solar.
- **01:03:42 Mike Catherine:** Discussed economic impacts of solar energy, farmland use, county tax generation, and raised questions regarding county right-of-way maintenance and ditch mowing.
- **01:07:16 Linda Hansen:** Commented on public speaker rules, clarifying historical and current procedures regarding speaker registration, time limits, and the prohibition of yielding time.
- **01:09:47 Sue Arrington:** Addressed proposed setbacks for rooftop solar systems in the solar ordinance and shared personal residential solar generation cost data.
- **01:14:13 Cheryl Dawson:** Spoke as a generational farm owner, expressing concerns regarding lack of transparency and community impacts related to the Rorton solar project along State Road 28.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **IT / GIS:** Jim Fluke reported on an inquiry from Blackford County regarding potential piggybacking onto Delaware County's Tyler public safety records management

system. IT and legal will evaluate administrative fees and cost-reimbursement structures.

- **HR Updates:** Noted a new fillable Personnel Information (PI) form, upcoming Apex 101 employee sessions on Thursday, open enrollment timeline adjustments (moving to late September/early October), and mandatory Title VI/ADA training.
- **Highway Department:** Superintendent Humber reported on ongoing staffing, recruitment of CDL drivers, and summer brush/mowing operations. Noted upcoming double-striping on Black Mills Road.
- **Financial Claims & Payroll:**
 - Payment of Claims: Approved in the amount of \$1,256,269.83 (Commissioner Brand voted "No"; Commissioners Rick and Henry voted "Yes").
 - ARP Claims: Approved in the amount of \$677,974.81 (Passed Unanimously).
 - Payroll (Period ending July 2, 2025): Approved for \$1,045,712.16 (Passed Unanimously).
 - Payroll (Period ending July 16, 2025): Approved for \$1,050,074.36 (Passed Unanimously).
- **Commissioner Updates:** Commissioner Brand noted upcoming Baker Tilly financial impact presentations, regional roadway roundtables, Gaston sidewalk expansion explorations, and a newly discovered county contract with "Vizant" providing 57% off commercial furniture pricing.
- **Adjournment:** The regular meeting recessed/adjourned via roll call vote (Passed Unanimously).